

Central Valley Regional Water Quality Control Board

16 July 2014

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NOTICE OF APPLICABILITY

WATER QUALITY ORDER 2014-0090, GENERAL WASTE DISCHARGE REQUIREMENTS FOR RECYCLED WATER USE, CITY OF WINTERS TEMPORARY WATER RECYCLING PROJECT, YOLO COUNTY

On 7 July 2014, the City of Winters submitted a Notice of Intent (NOI) to obtain coverage under Water Quality Order 2014-0090, *General Waste Discharge Requirements for Recycled Water Use* (hereafter, General Order) for a temporary water recycling project. The City of Winters owns and operates a wastewater treatment facility (WWTF) located northwest of the city at County Road 88 and County Road 32A, Yolo County. The WWTF is regulated under Waste Discharge Requirements (WDRs) R5-2002-0136, which prescribes requirements for the discharge of treated domestic wastewater to approximately 170 acres of city owned spray fields vegetated with native grasses. Given the current drought conditions facing the City and local agricultural interests, the City proposes to provide treated wastewater to agricultural operations adjacent to the WWTF, who currently receive water from the underlying groundwater aquifer or from the Yolo County Flood Control and Water Conservation District (YCFCWCD). Due to the dry conditions, YCFCWCD may be unable to meet the water needs of its customers.

On 3 June 2014, the State Water Resources Control Board adopted the General Order, to regulate the use of recycled water for all Title 22 uses except groundwater recharge. In addition, the General Order delegates the responsibility of administering water recycling programs to a designated Administrator to the fullest extent possible. Based on the information provided in the NOI, the proposed temporary water recycling project satisfies the general and specific conditions of the General Order. Therefore, this serves as formal notice that WQO 2014-0090 is applicable to the site and discharge described below. The City of Winters will act as the Administrator of the Recycled Water Program. You are hereby assigned WQO 2014-0090-0001 for this discharge. Please include this number on all correspondence related to this discharge.

WASTEWATER TREATMENT FACILITY

The City's WWTF provides secondary treatment with chlorine disinfection, and consists of two 0.2-acre primary aeration ponds, two 0.4-acre secondary aeration ponds, a 5-acre polishing pond, four storage ponds totaling 43.3 acres, a chlorination system, and two designated land

application areas for wastewater disposal. Effluent is treated to a disinfected secondary-23 level.

TEMPORARY WATER RECYCLING PROJECT AND RECYCLED WATER PROGRAM

The City proposes a temporary Recycled Water Program to provide disinfected secondary-23 water for agricultural use on farmland adjacent to the western site boundary of the City's WWTF. The proposed recycled water use area is Martinez Orchards (hereafter, Use Area), with approximately 86 acres of plum trees (for dried prune production) on drip irrigation. Approximately 229,500 gallons per day of water will be used during the 2014 irrigation season. The location of the WWTF and the Use Area is shown on Attachment A. Recycled water for the Use Area will be made available for irrigation during the 2014 irrigation season, expected to end prior to 30 November 2014.

The City, as the Administrator, will be responsible for the administration of the Recycled Water Program authorized pursuant to this General Order, including the requirements of Title 22. The City is the recycled water producer and distributor and is responsible for all permit requirements related to the production and distribution of recycled water. The City will distribute the recycled water to the farm boundary and work with the agricultural operators during the period of the temporary irrigation operations to ensure responsible operation and prohibit any cross-connection contamination. The agricultural operators will be subject to a contractual agreement for service with the City, and will operate the individual farming operations and their associated irrigation system including necessary noticing, monitoring, reporting, and emergency response as detailed in the associated recycled water service agreement.

The transmission and distribution facilities used for the duration of this project will be temporary and will be placed in between the City's existing spray field irrigation system and the adjacent farm's existing agricultural irrigation system. Pipelines will be laid aboveground and the locations known to all City WWTF staff and the agricultural operations staff. Signage will be posted to notify and prevent unintentional contact at the recycled water use areas.

The City submitted a May 2014 Title 22 Engineering Report to the California Department of Public Health (CDPH) for review. CDPH's approval letter dated 17 June 2014 stated no specific recommendations for inclusion in the waste discharge requirements that will be established through the Central Valley Water Quality Control Board for the temporary recycled water use project as defined. However, if the proposed project is to be completed past the calendar year 2014, an amended Title 22 report is required for review and approval by CDPH¹.

WATER RECYCLING USE AREA REQUIREMENTS

1. Application of recycled water shall be confined to the Use Area as defined in this NOA.
2. Notwithstanding the following requirements, the production, distribution, and use of recycled water shall conform to an Engineering Report prepared pursuant to Title 22, section 60323 and approved by the Drinking Water Program.

¹ Effective 1 July 2014, the functions of the California Department of Public Health Drinking Water Program were transferred to the State Water Resources Control Board. The term Drinking Water Program is therefore used instead of CDPH hereafter.

3. The use of recycled water shall not cause pollution or nuisance, as defined by Water Code section 13050.
4. Irrigation with recycled water shall occur only when appropriately trained personnel are on duty.
5. The recycled water shall be at least disinfected secondary-23 water as defined by Title 22, section 60301.
6. Recycled water shall be used in compliance with Title 22, section 60304(c). Regarding particular agricultural uses, recycled water shall be applied in compliance with the following:
 - a. Undisinfected secondary recycled water shall not be discharged to orchard or vineyard crops.
 - b. No recycled water used for irrigation, or soil that has been irrigated with recycled water, shall come into contact with the edible portion of food crops that may be eaten raw by humans;
 - c. Non food-bearing trees, seed crops not eaten by humans, food crops that must undergo commercial pathogen-destroying processing before being consumed by humans, and ornamental nursery stock and sod farms (provided no irrigation with recycled water occurs for a period of 14 days prior to harvesting, retail sale, or allowing access by the general public) may be irrigated with recycled water; and
7. The following setback distance from the Use Area shall be maintained:
 - a. 100-foot setback of irrigation from any domestic well, residential structures, or a place where public exposure could be similar to that of a park, playground, or school yard.
 - b. 25-foot setback from property lines.
 - c. 25-foot setback from public roads.
 - d. 25-foot setback from drainage courses.
8. No physical connection shall exist between recycled water piping and any domestic water supply, domestic well or existing potable water systems.
9. Public contact with recycled water shall be controlled using signs and/or other appropriate means on all properties and pipes.
10. Application of recycled water shall be limited to agronomic rates of the crop.
11. The Use Area shall be managed to prevent breeding of mosquitos including no standing water 48 hours after irrigation.
12. The City shall promptly provide notification of any recycled water spills or unauthorized uses.

RECYCLED WATER USE AREA MONITORING AND REPORTING REQUIREMENTS

Requirements for monitoring the recycled water system shall be in accordance with the General Order's Monitoring and Reporting Program. Disinfection system monitoring shall be sampled on a weekly basis and reported in the annual monitoring report. In addition, site inspection reports or monitoring reports as required in the City's Recycled Water Program shall be included in the annual monitoring report. The first monitoring report is due on **1 February** and is to cover the months of July through December.

DISCHARGE REQUIREMENTS

1. The discharge of recycled water at a location or in a manner different from that described in the NOI is prohibited.
2. The discharge of recycled water to wetlands, surface waters, surface water drainage courses, or biologically sensitive areas, is prohibited.

GENERAL INFORMATION AND REQUIREMENTS

The City shall comply with the Specifications, Water Recycling Administration Requirements, and General Provisions of the General Order.

Please review this Notice of Applicability (NOA) carefully to ensure that it completely and accurately reflects the proposed Recycled Water Program. If the discharge violates the terms or conditions, the Central Valley Water Quality Control Board may take enforcement action, including the assessment of an administrative civil liability. Failure to abide by the conditions of the General Order, including its monitoring and reporting requirements, and this letter authorizing applicability could result in enforcement actions, as authorized by provisions of the California Water Code.

The required annual fee specified in the annual billing from the State Water Board shall be paid until this NOA is officially terminated. The City must submit in writing a Notice of Termination following completion of the discharge. **By 31 December 2014**, the City shall either cease the use of recycled water or submit evidence that the Drinking Water Program has approved an amended Title 22 Engineering Report.

Now that the NOA has been issued, the Water Board's Compliance and Enforcement Section will take over management of your case. Brendan Kenny is your new point of contact for any questions about the Order. In addition, all monitoring and technical reports should be submitted to him. If you find it necessary to make a change to your permitted operations or the application of recycled water as described in this NOA changes or is to be continued past calendar year 2014, Brendan will direct you to the appropriate Permitting staff. You may contact Brendan at (916) 464-4635 or at bkenny@waterboards.ca.gov.


For PAMELA C. CREEDON
Executive Officer

Enclosure: Statewide General Waste Discharge Requirements for Recycled Water Use,
Water Quality Order 2014-0090

Cc w/o: Annalisa Kihara, State Water Resources Control Board, Sacramento
Yolo County Environmental Health Division, Woodland
Richard Hinrichs, California Department of Public Health, Redding
Ali Rezvani, California Department of Public Health, Sacramento
Carol Scianna, City of Winters, Woodland
Kris Olof, Tully & Young, Sacramento



FACILITY AND USE AREA MAP
CITY OF WINTERS
TEMPORARY WATER RECYCLING PROJECT
YOLO COUNTY

Drawing Reference:
 Google earth

Approximate Scale
 As Noted Above

